

Celebration with CAUTION

The recent judgment on Section 377 of the IPC is the victory in the long war for acceptance of same-sex love. But nothing will change until the society alters its mindset and Government takes a stand.

| By Mihir Srivastava and Nirmala Ravindran |

We declare that Section 377 of the IPC, insofar it criminalises consensual sexual acts of adults in private, is violative of Articles 21, 14 and 15 of the Constitution." Paragraph 132 of the July 2 judgment of the Delhi High Court Bench comprising Chief Justice A.P. Shah and Justice S. Muralidhar. When these historic lines were read in the courtroom, a surge of emotion cut through the crowd, most of them holding hands, tears brimming in their eyes. As they

walked into the street, the celebrations began. It was their moment of reckoning. Suddenly, the community known by the awkward acronym of LGBT (Lesbians, Gays, Bisexuals and Trans-genders) had acquired the right to live and love the way they wanted. Homosexuality, so far a crime at par with paedophilia and sex with animals, had been decriminalised.

It hasn't been easy. The verdict is a result of a move initiated in 2001 by a heterosexual woman, Anjali Gopalan, founder of the Naz Foundation,

who had sought judicial intervention to strike down certain provisions of the archaic Section 377 of the IPC 1861. The court dismissed it out-of-hand at that point, but five years later, the Supreme Court referred it back. This time, with the help of a team of committed advocates of the Lawyers Collective under the leadership of Anand Grover, they triumphed. The timing couldn't have been better. Not only have urban Indians got used to watching gay men on soaps (*Jassi Jaissi Koi Nahin*) and in glossy movies (*Dostana*)

but they've also been witnessing colourful parades across its metropolises like Kolkata, Bangalore, Chennai and Delhi.

For men who sleep with men and women who go to bed with women, it is the validation they have been looking for. Take Mayank Sharma, 28, an entrepreneur, and Rajeev Chandran, 25, a software consultant from Bangalore. Both are elated despite knowing the limitations: "There are many things that still need to change. We would like to adopt a child, but Indian laws allow single fathers only



RAVI S SAHANI

RIDE TO

1989 Ashok Row Kavi, one of the first few to come out of the closet, is alarmed by the refusal of funds to organisations like ACT UP to treat gay people at an AIDS conference in Montreal.

1990 Kavi starts *Bombay Dost*, Mumbai's first gay magazine.